

**STATEMENT OF WORK (SOW)
FOR
LEASE OF ONE (1) 25- TON HEAVY FORKLIFT**

1. GENERAL INFORMATION

1.1 Introduction

The Ammunition Center Europe (ACE) has a need to supplement its forklift fleet with one (1) heavy forklift with 25-ton load carrying capability to meet U.S. Government ammunition storage and demilitarization program needs.

1.2 Scope

The contractor shall lease, to the U.S. Government, the forklift identified in Exhibit A of this Statement of Work. Contractor shall provide and conduct all scheduled, unscheduled maintenance and repair for leased equipment.

1.2 Contractor Point of Contact (POC)

Contractor shall provide name, direct number and email address of a POC and alternate POC within 15 days of award of contract. POC shall be available during U.S. Government duty hours, 0800-1600, Monday through Friday, except German holidays (identified below). Answering services or machines are not an acceptable form of replacement for the POC:

German national and local holidays are:

New Year's Day January 1st

Good Friday Varies

Labor Day May 1st

Whit Monday Varies

Day of German Unity October 3rd

1st Christmas December 25th

2nd Christmas 26th

* Local and host nation holidays occur in the region/state where performance takes place and may vary per region. Not all local holidays apply to all regions.

Easter Monday Varies

Ascension Day Varies

Corpus Christi Varies

All Saints' Day November 1st

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1.2.1 Language Proficiency

The Contractor's personnel identified in this paragraph shall meet the stipulated English proficiency levels in reading, speaking, and writing (reference AE Pamphlet 690-70, Appendix H):

Level I:

- a. Speaking: Able to satisfy minimum courtesy requirements and maintain very simple face-to-face conversations on familiar topics.
- b. Reading: Sufficient comprehension to read very simple written material.

Level II:

- a. Speaking: Able to satisfy most work requirements with language usage that is acceptable and effective. Able to speak the language with sufficient structural accuracy and vocabulary to participate effectively in most formal and informal conversations on practical, social, and professional topics.
- b. Reading: Able to read within a normal range of speed and with almost complete comprehension a variety of material on unfamiliar subjects. Can comprehend a variety of styles and forms pertinent to professional needs. Rarely misinterprets texts.

Level III:

- a. Speaking: Able to use the language fluently and accurately on all levels normally pertinent to professional needs. Language usage and ability to function are fully successful.
- b. Reading: Able to read fluently and accurately all styles and forms of the language pertinent to professional needs.

Required Levels of Proficiency for English Languages under this Statement of Work:

Contractor's Personnel:	Read	Write	Speak
POC and Alternate	1	1	1

1.3 Contractor Travel

Contractor travel to deliver, return, provide and conduct scheduled and unscheduled maintenance and repair, provide training, and roadside assistance and recovery shall not be separately priced or invoiced. The contractor shall include travel costs within their final overall price.

1.4 Compliance with Law

Nothing in this SOW precludes the contractor from complying with all Federal, State and Local laws in the performance of the contract.

1.5 Access and General Protection/Security Policy and Procedures

Contractor and all associated sub-contractors employees shall provide all information required for background checks to meet installation access requirements to be accomplished by installation provost marshal office, director of emergency services, or security office. Contractor workforce must comply with all personal identification verification requirements (FAR clause 52.204-9, Personal Identity Verification of Contractor Personnel) as directed by DOD, HQDA, and/or local policy. Should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in contractor security matters or processes.

1.5.1 For contractors that do not require CACs, but require access to a DOD facility or installation

Contractor and all associated sub-contractors employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (TSDB) (Armed and Dangerous 2013, 190-13), applicable in accordance with a commander installation/facility access and local security policies and procedures (provided by government representative), or at OCONUS locations, in accordance with status of forces agreements and other theater regulations.

1.6 Early Termination of Lease/Contract

52.212-4(l) and 52.212-4(m) shall govern the termination by convenience of the Government or by cause of the contractor.

1.7 Lease Payments

1.7.1 Rent shall accrue from the beginning of the contract, or from the date each vehicle is delivered to the Government, whichever is later, and shall continue until the expiration of the lease or the termination of the contract. However, rent/lease shall accrue only for the period that the forklift is in the possession of the Government.

1.7.2 Rent shall not accrue if the Contracting Officer determines that the forklift does not comply with the Condition of Leased Vehicles section of this SOW or otherwise does not comply with the requirements of this SOW, until the forklift is replaced or the defects are corrected.

1.7.3 Rent/lease shall not accrue for the forklift during any period when the forklift is unavailable or unusable as a result of the Contractor's failure to render services for the operation and maintenance of the forklift in accordance with this SOW.

1.7.4 Rent/lease stated in monthly terms shall be prorated on the basis of 1/30th of the monthly rate for each day the forklift is in the Government's possession. Rent/lease shall include unlimited Kilometers (KM) and unlimited operating hours for the forklift while in use by the Government.

1.8 Condition of Leased Forklift

1.8.1 The forklift provided shall be of good quality, not be older than 2 years and maximum 2000 working hours, be in safe operating condition, and shall comply with all Federal, State and Local safety regulations applicable to the forklift. The Government shall accept or reject the forklift promptly after receipt. If the Contracting Officer determines that the forklift furnished is not in compliance with this contract, the Contracting Officer shall promptly

inform the Contractor in writing. If the Contractor fails to replace the forklift or correct the defects, as required, within five calendar days of notification by the Contracting Officer, the Government may –

1.8.2 By contract or otherwise, correct the defect or arrange for the lease of a similar forklift and shall charge or set off against the Contractor any excess costs occasioned thereby; or

1.9 Marking of Leased Forklift

The Government may place nonpermanent markings or decals, identifying the using agency, on each side, and on the front and rear, of the forklift leased under this contract. The Government shall use markings or decals that are removable without damage to the vehicle.

1.9.1 The Contractor may use placards for temporary identification of the forklift except that the placards may not contain any references to the Contractor that may be construed as advertising or endorsement by the Government of the Contractor.

2. CONTRACTOR FURNISHED SERVICES, PROPERTY, AND INFORMATION

2.1 The contractor shall provide all technical manuals; manufacturer's certificates; lubrication requirements, if any; and operators manual in English and German upon delivery of the forklift.

2.2 The contractor shall deliver to the Government the forklift, within 10 days of contract award, in operational condition without any technical defects or physical defects/damages. The contractor shall ensure the forklift is ready to be used by the Government upon delivery.

Damages will be reported to contractor with three (3) working days of discovery. The contractor will contact the Unit POC within 2 working days of receipt to report the damages.

2.3 Insurance

The contractor shall comply with clause 52.228-4 Liability and Insurance Leased Motor Vehicles regarding insurance of vehicles.

2.4 Services, Maintenance and Warranty

2.4.1 The contractor is responsible for scheduled maintenance/services and the repair of malfunctions (costs shall be included in leasing rate.)

2.4.2 The contractor shall provide a service schedule to the Government and provide a service company within a radius of 50 km from the center of Miesau

2.4.3 Full use of the forklift is critical to the Government's movement of supplies and assets. Therefore, if the leased forklift is identified as inoperable, and will be unavailable for 48 hours or more, then the contractor shall provide and deliver, within 24 hours, a replacement leased forklift at no additional cost to the Government.

3. GOVERNMENT FURNISHED SERVICES, PROPERTY AND INFORMATION

3.1 Perform preventive maintenance as described in the operator's manual.

3.2 Comply with manufacturer's service requirements and schedule as provided by Contractor.

3.3 Repair/replace/refill type items e.g. light bulbs, lamp cover, warning plates, wiper blades, gasoline, motor oil, antifreeze and similar items shall be provided and replaced by the Government. Any items determined to be damaged by other than normal wear and tear or use shall be the responsibility of the contractor.

3.4 Any damaged tires caused by normal wear and tear shall be replaced by the Contractor. Any tires found to be damaged by other than normal wear and tear, shall be replaced by the Government.

4. PROCEDURES FOR ACCEPTANCE AND TURN-IN OF FORKLIFT

4.1 Delivery: The Contractor shall deliver the forklift to the Miesau Ammo Depot, Bahnhofstr. 78, 66892 Bruchmühlbach-Miesau and include those costs within their lease price

Delivery Inspection. Upon forklift delivery to the U.S. Government, the contractor shall conduct a joint inspection with the user to determine if the forklift meets the requirements.

- a) The contractor shall document all contractor and user identified discrepancies on the contractor's applicable form(s).
- b) The contractor and the user shall sign and date the joint inspection form.
- c) The Contractor shall provide a legible copy of the joint inspection form to the user.
- d) The government may document identified discrepancies on a separate form and take pictures of the vehicle condition.

4.2 Turn-in: Upon equipment turn-in, the contractor shall conduct a joint inspection with the user to identify any new discrepancies.

- a) The contractor shall document all contractor and user identified discrepancies on the contractor's applicable form(s) and a copy of this form to the user.
- b) The contractor and the user shall sign and date the joint inspection form.
- c) The Contractor shall provide a legible copy of the joint inspection form to the user.
- d) The government may document identified discrepancies on a separate form and take pictures of the equipment condition.

The Contractor shall pick-up the forklift from the Miesau Ammo Depot, Bahnhofstr. 78, 66892 Bruchmühlbach-Miesau and include those costs within their lease price.

4.3 The Government and Contractor shall perform a joint inspection together, to verify and document the condition of the leased forklift at time of delivery and return. Any damage identified on delivery from the contractor to the Government shall be the responsibility of the Contractor. Any damage identified, other than normal wear and tear, on return to the contractor shall be the responsibility of the Government.

5. TRAINING

5.1 Contractor shall provide user training for up to 10 personnel on the proper and safe operation and maintenance of the leased forklift within 10 days of delivery of equipment.

5.2 Training shall be conducted in German and at the forklift delivery location.

5.3 Training shall contain enough information so that personnel are able to utilize the forklift on their own, without assistance.

EXHIBIT A
MINIMUM SPECIFIC REQUIREMENTS

Note: Contractor may provide more than what is minimum, but it cannot be less than the minimum requirements as identified below

Manufacture/Model:	Konecranes, SMV 25-1200 C or Equal
Load-carrying capacity:	25,000 kg at 1,200 mm L.C.
Load center:	1200 mm
Mast:	Lifting Height: 3,000 mm Construction height retracted: 3,310 mm Construction height reeled-out: 4,755 mm Free Lift: 0 mm
Tilt angle:	5° forward / 10° rewind
Forks:	Dimensions 2,600 x 250 x 110 mm, fully tapered fork suitable for container pockets
Engine:	Diesel, minimum 185 kW, EU Stage 4 / Tier 4f
Tires:	pneumatic tires driving and steering axle
Cabin:	Fully enclosed and air-conditioned driver's cabin. Ergonomic adjustable seat, with seat located centrally between clear view mirrors
Electric system:	2 front headlights (LED), plus 4 additional roof lights 2 working lights on mast (LED), plus 2 mast lights 4 direction blinkers, brake/taillights, 2 rear lights (LED)
Accessories:	Warning beacon LED Reverse alarm (acoustic signal when reversing) Raised Cabin (mounted 25 to 35 cm higher for better line of sight) Centralized lubrication Electronic weighing system Back-up camera Electronic joystick with RPM control Hydro-pneumatic accumulator / vibration damper
Other requirements:	Technical documentation in German and English CE- conformity declaration Packing and Transport costs included Transport insurance included On-site Training in German Language included Equipment ready to use Not older than 2 years and maximum 2000 working hours